



Global Separation of Employment Policy

Scope

This policy applies to all employees of Cognizant entities, subsidiaries, and joint ventures over which Cognizant has operational control (collectively “Associates”).

This policy does not apply to individuals hired by Cognizant as contractors or through third-party vendors, or to employees of newly acquired entities who have not yet transitioned to Cognizant.

Guiding Principles

At Cognizant, we are dedicated to providing an environment in which everyone can thrive, grow, and develop. Despite our efforts to make the employee experience fulfilling and rewarding, we recognize that in certain circumstances, the employment relationship will come to an end. We are committed to ensuring that the Separation of employment process is clear and transparent; and that the employee is treated appropriately.

This policy establishes a broad framework for defining various types of Separation and the obligations that the employees must fulfill upon Separation. There may be other country-specific rules relating to termination of employment not specifically listed here. Employees must follow this policy as well as their respective local Separation policies and procedures and are bound by the terms and conditions of their employment contracts, as well as the laws and regulations governing Separation in their respective jurisdictions.

Employment with Cognizant is voluntary and can be terminated by the Associate or Cognizant. All Separation procedures are subject to terms and conditions as per the Employment contract, country-specific procedures, and local laws. The following are the most common reasons for employment Separation:

- **Resignation** is a voluntary decision made by the Associate to leave Cognizant. An Associate who wishes to resign from Cognizant must give notice of

Translations

French (Canada)

Key Definitions

Employment contract: An agreement between an Associate and Cognizant which defines the terms and conditions of the employment relationship.

Last Working Day (LWD): The last day the Associate is employed by Cognizant and active on payroll. In the case of job abandonment, it is the date the Associate is notified of the Separation subject to applicable local law.

Separation: Occurs when the employment contract between an Associate and Cognizant comes to an end.

Notice Period: The time frame that Cognizant is aware of the pending Separation from the date that notice is given by either party.

Home Country: Typically the country where the Associate lives permanently and is hired. The home country will often be designated in the Associate's assignment documentation as the country from which they have been assigned.

Host Country: Typically the country to which the Associate is temporarily assigned with the expectation of returning to their home country in the future.

their intention to leave, where applicable. During the Notice period, they are expected to conduct themselves professionally just as they would in the normal course of employment in accordance with the terms of their Employment contract and local laws.

- Associates' **retirement** is contingent on reaching the retirement requirements (including age requirements, if applicable in their country) as specified by law or specified in their employment contract or otherwise meeting the requirements of an applicable employee benefit plan or program and is subject to local law or code.
- In the unexpected event of an Associate's **death**, a country-specific process will apply, in accordance with local laws.
- Cognizant may **separate** an Associate's employment for a variety of reasons, including, but not limited to, unsatisfactory performance, violations of the [Code of Ethics](#) and/or Cognizant policies, failure to adhere to working conditions, or [misconduct](#). Where possible, a concerted effort to resolve the issues will come before Separation, following local disciplinary procedures. In severe cases, however, Separation may occur without prior corrective action. In such cases, Cognizant reserves the right to separate with immediate effect, subject to applicable local laws
- **Job abandonment (JA)** is defined as an unauthorized absence with no notice in accordance with the project or department call-out procedures for a defined period set at the country level or failure to adhere to the applicable leave process. Cognizant may, subject to local laws and procedures, take disciplinary action, up to and including Separation. In the case of JA, the Last working day (LWD) is the date the Associate is notified of the Separation. Managers must ensure that instances of job abandonment are promptly reported upon which all system access must be revoked.
- Separation may also occur when there is a **business need** to reduce the workforce and/or when a job is no longer required, subject to local laws. Cognizant Associates are entitled to fair treatment in respect to all aspects of their employment, consistent with local law. Cognizant never discriminates against a person's [Legally protected characteristics](#), when making any employment decisions.
- Associates hired on a fixed-term Employment contract may be separated at the end of the **defined contract period** unless the contract is extended or there is a conversion to full-time/part-time employment.
- An Employment contract may also be terminated by

Related Policies & Processes

- [Code of Ethics](#)
- [Global Acceptable Use Policy](#)
- [Global Workplace Misconduct and Remediation Policy](#)
- [Intellectual Property Policy](#)
- [Region/Country Rehire Policy](#)

Cognizant when Associates are transferred to another employer. Such **transfers** may occur due to acquisitions, divestitures, mergers, or changes in customer relationships.

- **Separation while on international assignments**
 - Associates currently on short-term travel with payroll still operating from their Home country must adhere to the Home country's Separation process and policy, along with the terms and conditions in their Employment contract.
 - Associates on an international assignment with payroll transfer should adhere to the terms and conditions related to Separation in their Employment contract from their Home country and Host country, as applicable.
- **Actions during Separation process**
 - At the time of Separation, **Associates must return all Cognizant and/or client property**, including but not limited to cellphones, keys and access badges, laptops/desktops, USB devices, and identification cards. Failure to return some assets or assets returned in unusable condition may result in pay deductions or being charged the replacement cost of the item(s) from the Associate's final pay, where applicable and permitted under local law. In some cases, Cognizant may consider failure to return an asset to be theft, which could result in criminal prosecution or civil action under applicable law.
 - **Cognizant reserves the right to wipe all Cognizant or Client-related data**, applications, and other information or property from Personal or Cognizant-owned assets to prevent unauthorized disclosure of information before or after Separation as per [Global Acceptable Use Policy](#).
 - **Associates are prohibited from disclosing any proprietary or private information of Cognizant**, while employed, including during their Notice period and after Separation. Associates are responsible for maintaining confidential information as stipulated in the Employment contract and the [Global Acceptable Use Policy](#). Associates must follow the provisions of the [Intellectual Property Policy](#) both during and after their employment to preserve Cognizant's intellectual assets.
 - **Cognizant may invite all voluntarily separating Associates to take part in an exit survey or interview** to evaluate the overall Associate experience with Cognizant, seek their feedback and identify opportunities for improvement in the future.
- Subject to applicable law and any waivers issued by Cognizant, Non-Compete, Non-Solicit Restrictions, Indemnity, and any other clauses in the Associate's Employment contract that are expected to survive by their nature, will survive the Separation of their employment (for any reason) and continue to apply even after the Separation of their employment with Cognizant.
- Associates may be entitled to benefits upon Separation, based on statutory norms, local laws, and regulations, as well as other country-specific benefits that would be determined and processed by the respective countries' Benefits administrators. Processes and procedures specific to each country must be referred to and followed.
- An Associate who separates will be paid till the LWD, as well as any additional and/or accrued earnings, receivables, and benefits to which they are entitled. Any outstanding loans, advances, or other agreements between the Associate and Cognizant may be deducted where permitted under local law. This payment may be conditioned on them completing the necessary country-specific clearance process in accordance with local law.
- Subject to local law and country-specific processes, the Associate may be issued a reference/relieving/experience/service letter.
- Associates who leave Cognizant in good standing may be considered for rehire if an open position becomes available in the future. For more information, please refer to the respective [regional/rehire country policies](#).

Policy Modifications

Cognizant reserves the right to amend its policies as necessary. Any changes to the Global Separation of Employment Policy will be approved by the Chief People's Officer.

Version History

Revision Date	Description of Change
OCT-22-2021	Initial Release
MAY-19-2023	Standardization of Template

Policy Control Information

Policy Name: Global Separation of Employment Policy

Department: Human Resources

Revision Date: MAY-19-2023

Effective Date: OCT-22-2021

Policy Owner: Chief People's Officer

Cognizant (Nasdaq-100: CTSI) engineers modern businesses. We help our clients modernize technology, reimagine processes and transform experiences so they can stay ahead in our fast-changing world. Together, we're improving everyday life. See how at www.cognizant.com or [@Cognizant](https://twitter.com/Cognizant).

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